

Do You Qualify for Italian Citizenship?

The Free Qualification Guide by ItalianToBe

You might have a right to Italian citizenship and not know it.

Millions of Americans carry Italian ancestry. Many of them have a legitimate, legal right to Italian citizenship — passed down through bloodline, waiting to be claimed. Some have been sitting on this right for decades without realizing it.

Italian citizenship law changed significantly in 2024. Under the reform, descent claims through *jure sanguinis* are now limited to a parent or grandparent as the qualifying Italian ancestor. Great-grandparents and earlier generations are no longer a valid basis for new applications filed after the reform took effect. If your connection runs further back than a grandparent, alternative pathways may still exist — but the rules are different.

This guide exists to help you understand whether a right applies to you and which pathway fits your situation. It is not a substitute for professional advice, and it cannot tell you definitively whether your case will succeed — that depends on documents, dates, and details that are unique to your family. But it will give you a clear starting point.

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PART ONE

Am I Eligible for Jure Sanguinis?

The Qualification Checklist

Answer each question as accurately as you can. If you are unsure, note it and move on.

1 Do you have a parent or grandparent who was born in Italy?

Under the 2024 reform, jure sanguinis claims are limited to a parent or grandparent as the qualifying Italian ancestor. Great-grandparents and earlier are no longer valid for new applications. If your connection runs further back, speak with a consultant.

2 Did that ancestor remain an Italian citizen at the time the next person in your lineage was born?

If your Italian ancestor naturalized as a US citizen before the birth of the next person in the chain, the citizenship right cannot be passed down. Exact dates must be verified through official records — not assumed from family stories.

3 Is every person in the lineage between your Italian ancestor and you born in wedlock?

Children born outside of marriage were historically treated differently under Italian law. Court decisions have addressed some of these cases, but it is worth identifying early if there is any ambiguity in your family tree.

4 Are you able to locate, or willing to research, the vital records for each generation?

Birth, marriage, and death certificates — both Italian and American — are required for every generation in the chain. Without them, no case can move forward.

5 If your line of descent passes through a female ancestor born before 1948, are you prepared for a more involved process?

Cases passing through a woman before 1948 require a civil court case in Italy rather than a standard consulate application. See Part Two for full details on the 1948 rule.

PART TWO

The Main Pathways to Italian Citizenship

Italian citizenship law offers several distinct routes. Understanding which one applies to you determines how your case is handled, how long it takes, and what it costs.

1

Jure Sanguinis — Citizenship by Descent

For those with a parent or grandparent who was an Italian citizen.

- Under the 2024 reform, the qualifying Italian ancestor must be a parent or grandparent who held Italian citizenship at the time of the relevant birth in your lineage.
- The citizenship right must pass uninterrupted through each generation. Any naturalization before the next birth in the chain breaks the claim.
- You apply through the Italian consulate covering your US state, or in person in Italy. In-person applications typically resolve within 3 to 12 months; consulate timelines vary widely and can run several years.



The 1948 Rule — A Particularity Within Jure Sanguinis

Prior to 1948, Italian women could not legally pass citizenship to their children. If your line of descent runs through a female ancestor before that date, a standard consulate application is not available to you.

Instead, a civil court case is filed in Italy to formally recognize your right. These cases are well established in Italian courts, typically resolve within 12 to 24 months, and require an Italian attorney.

2

Citizenship Based on Residency

For those who choose to live in Italy and naturalize through residence.

- If you do not have an ancestral claim, or prefer a different route, you can apply for citizenship after legally residing in Italy for a qualifying period.
- EU citizens qualify after 4 years of legal residence. Non-EU citizens, including Americans, must complete 10 years.
- Requirements include proof of legal residency, Italian language proficiency, and a clean criminal record.
- This is a longer process, but fully viable for those committed to building a life in Italy.

3

Citizenship Through Marriage

For those married to an Italian citizen.

- If you are married to an Italian citizen, you can apply for citizenship after 2 years of legal residency in Italy, or after 3 years if residing abroad.
- If you have a child born of the marriage, the waiting periods are cut in half: 1 year of residency in Italy, or 1 year and a half if residing abroad.
- These timelines reflect the 2018 security decree, which doubled the original periods. The reduction for families with children remains in effect.
- Italian language proficiency is required.
- This route is entirely independent of ancestry and is based on the marital relationship alone.

PART THREE

Common Disqualifiers — What Kills a Case

Most failed applications do not fail because of bad luck. They fail because of specific, identifiable problems that were either unknown or unaddressed going in.

**Your Italian ancestor naturalized before the birth of their child in your lineage**

This is the most frequent disqualifier. If your grandfather naturalized as a US citizen before your parent was born, the chain is broken. The exact naturalization date must be verified through official records, not assumed based on family stories.

**The qualifying ancestor is beyond a grandparent**

Under the 2024 reform, jure sanguinis claims are limited to those whose qualifying Italian ancestor is a parent or grandparent. Great-grandparents and further are no longer valid for new applications. Alternative routes may exist depending on your situation.

**Your ancestor formally renounced Italian citizenship**

Renunciation ends the right to pass citizenship. This is less common than a naturalization break, but it does occur — particularly in cases involving military service or certain government employment.

**Missing or unrecoverable vital records**

Every generation in the chain requires documentary proof. If a certificate has been lost, destroyed, or was never recorded, the application cannot proceed without alternative evidence — and that evidence is not always available.

**Applying through the wrong consulate or pathway**

Filing through the wrong consulate, or pursuing a standard jure sanguinis application when your case requires the 1948 court route, can result in years of wasted time and additional expense.

PART FOUR

What Documents Will You Need?

The documents required vary by pathway and by how many generations back your Italian ancestor is. Your consultant will identify exactly what applies to your chain.

Documents needed for *jure sanguinis* cases:

Document	Required for each person in the bloodline chain
Birth certificate	For your Italian ancestor, every person in the chain, and yourself.
Death certificate	For each person in the chain who has passed, including your Italian ancestor.
Marriage certificate	For each marriage within the lineage.
Naturalization record (or proof that naturalization never occurred)	The most critical document. The exact date — or confirmation your ancestor never naturalized — determines whether the chain holds.

Documents depending on your situation:

Your situation	What changes
Applying in person in Italy (residency method)	Proof of legal Italian residency, codice fiscale, language documentation, clean criminal record, plus others.
Citizenship through marriage	Marriage certificate, proof of Italian spouse's citizenship, residency documentation, language certification, plus others.

Documents from US vital records offices will typically need to be apostilled — certified for international use — and officially translated into Italian. Your consultant will confirm which documents require this treatment.

Ready to find out where your case actually stands?

Every case is different. This guide gives you the framework — but your specific dates, records, and lineage determine what is actually possible. We start every new client relationship with a free eligibility conversation, no commitment required.

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This guide is provided for informational purposes only and does not constitute legal advice. Citizenship law is complex and specific to each case. Consult a qualified professional before taking action.

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